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California injects oxygen into the fight for the Thyssen 'Pissarro' plundered by Nazis

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A painting presided over the room that Claude Cassirer used as an office. It was a reproduction of Rue Saint-Honoré in the evening. Rain Effect (1897), the work by impressionist Camille Pissarro that has been at the center of a bitter legal dispute for nearly two decades between the Cassirers, the Spanish government and the Thyssen Museum in Madrid. "I had it done for my father. They framed it beautifully. Sometimes it causes confusion because when people see it they think they've already given the painting back to us," says David Cassirer, son of Claude and grandson of Lilly Cassirer Neubauer, the original owner of the work, who died in 2010 and 1962, respectively.

The copy of Pissarro's painting, which was plundered by the Nazis at the beginning of World War II, hangs today in the living room of David, who just turned 70. "I look at it every day and in my mind I talk to it. I tell her 'come back to me, come back to us,'" Cassirer says from Denver, where he lives. The hope of that happening seemed to be quashed for good last January, after the California Court of Appeals ruled against the Cassiers and ruled that Spain has the right to retain the painting, endorsing several earlier court decisions in U.S. federal courts in 2015 and 2022. The three judges on the Court of Appeals panel unanimously found that the Spanish rule prevails over the California rule, which solidified the Pissarro's permanence in Madrid, although Judge Consuelo Callahan issued a dissenting opinion to emphasize that "Spain should have voluntarily relinquished the painting."

More information 'Pissarro case': a moral dilemma for Spain But recently the California government has given new oxygen to the Cassirers' plea. Gavin Newsom, the state's governor, signed a law on September 16 to help "residents recover art and property stolen as a result of political persecution". Newsom promulgated the rule at an event at the Los Angeles Holocaust Museum, surrounded by members of the Cassirer family. "It is a moral and legal imperative that these valuable pieces be returned to their rightful owners," the Democratic governor said. The governor is enacting around 900 new state laws these days. He only signs a handful in person. It was his decision to turn this ceremony into a symbolic act to demand justice.

The work was acquired by Baron Hans Heinrich von Thyssen-Bornemisza in 1993 after passing through several hands. Its complex history goes back half a century earlier. Lilly Neubauer, a Jew, was forced to sell it in early 1939 for 900 marks, about $360 today (322 euros), to pay for a visa and leave Nazi Germany with her husband, a Munich doctor, for England. Lilly's sister stayed in Germany to care for her mother and died in Auschwitz. Claude Cassirer, Lilly's grandson, discovered the painting, valued at tens of millions of dollars, and tried to recover it through diplomatic efforts. When these did not work, he launched a legal battle to recover it in 2005, explains David Cassirer.

The new law, called Assembly Bill 2867 (AB 2867), began to take shape after the latest legal setback. It has been drafted by local legislator Jesse Gabriel, who before jumping into politics made a career as an attorney litigating for some families of Holocaust survivors to collect pensions for their work in Nazi concentration camps. This summer, the assemblyman visited Spain with a delegation to discuss energy and trade issues. In a time-out, he went to the Thyssen to see Rue Saint-Honoré in the afternoon. Rain effect.

"I thought the painting would be one of the star pieces, but it's not. It's in a wing with several other paintings. Returning it would have minimal cost to the museum. The collection would still be impressive," Gabriel notes. "I found the kindness and excellent disposition of the government officials we met with to be incongruous with the reluctance to return a painting that was stolen," he adds. The bill, supported by Democrats and Republicans, cites the Cassirer case in its text, but Gabriel stresses that the regulation goes beyond this ligitium and others stemming from the Holocaust. "It sends a message that it is time to do the right thing."

The case has come to prominence lately in the United States, in a context where anti-Semitism has been on the

rise. "Of the millions of works of art and cultural property plundered by the Nazis, countless objects remain unreturned to their dreams. Today, too many governments, museums, dealers, galleries and individuals are resisting restitution efforts," U.S. Secretary of State Anthony Blinken said in March at an event commemorating 25 years of the Washington Principles, a pledge adopted by 44 nations, including Spain, to provide justice in cases of art plundered by the Germans.

According to Sam Dubbin, counsel for the Cassirers in the case along with noted attorney David Boies, the new law opens a new avenue for litigious families in the U.S.. "It makes it very clear that only California law and not foreign laws, such as Spanish law, can apply in a stolen art dispute. It's not just for Holocaust victims, but for anyone who has been stripped of art they own," he says by phone. The text of the rule only allows claims for stolen art up to 100 years prior to its enactment.

Other jurists are skeptical about the scope of the new law. "It's unconstitutional, it doesn't stay within the legal order," assures a lawyer who is familiar with the case, but does not want to be quoted. He believes that the California Congress is trying to change the rules of the game because one side does not favor federal court rulings. "It is not California's place to take a position on issues that fall under U.S. federal law," adds the attorney, who lives and litigates in that state.

Thaddeus Stauber, who has represented the Thyssen-Bornemisza Collection Foundation in the case for nearly two decades, points out that Spain's property law has been considered by international courts on par with that of Germany, the United Kingdom and other European nations, and that it is neither anti-Semitic nor morally questionable. The lawyer recalls that in 1958 the German Government compensated the family with 120,000 Deutschmarks, the amount Lilly Neubauer requested, to put an end to the family's claim. David Cassirer has indicated that he would be willing to return the money in exchange for recovering the painting.

Stauber recalls that after a full trial and confirmation that the Thyssen is the rightful owner of the work, the Court of Appeal has ordered the case closed. The Supreme Court of the State of California has refused to pick it up and call into question the Spanish law. Following that ruling, the Cassirer family can now only ask the Supreme to re-examine the case, which it did in 2022, under the light of a new California law. However, the attorney recalls that high court precedents point out that the state cannot pass laws that give special treatment to citizens in modern restitution claims of World War II works, especially when the property in question is not located in California.

David Cassirer believes the legal battle has been "unnecessary and somewhat excessive." "My father would never have believed this new law was necessary because a thief can't transfer ownership of something stolen. Never in a million years did we think Spain would take this stubborn position, waiting for all of us Cassirers to die," he says. His family is preparing to open, together with the Jewish Federation, a new chapter in this judicial controversy that will be 20 years old in 2025.

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